



File No.: EXP202305562

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against CONSORCIO BARCELONA SUPERCOMPUTING CENTER - NATIONAL SUPERCOMPUTING CENTER with NIF EA0041150, and noting indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), actions were initiated under file number EXP202207910.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD hereinafter).

In the context of the investigative actions, two requests for information were sent to the ANDALUSIAN PUBLIC FOUNDATION FOR HEALTH RESEARCH MANAGEMENT IN SEVILLE with NIF G41918830 (hereinafter, the Foundation), regarding the complaint referred to in the first section, requesting that, within ten working days, it submit to this Agency the information and documentation indicated therein. The first request was registered out on January 9, 2023, while the second was registered on February 28, 2023.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by the Foundation on January 10, 2023, and March 6, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the Foundation has not submitted a response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

FIFTH: On May 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the Foundation, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

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SIXTH: The aforementioned initiation agreement was received by the Foundation on May 31, 2023, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On June 28, 2023, and with entry registration number REGAGE23e00042576482, the Foundation submitted a written statement of allegations in response to the information request made in the context of file EXP202207910. It did not raise any other issues regarding the subject of the current sanctioning procedure.

EIGHTH: On July 10, 2023, a resolution proposal was made, in which it was proposed that the Director of this Agency declare that the Foundation has infringed the provisions of Article 58.1 of the GDPR, an infringement classified under Article 83.5 of the GDPR. This resolution proposal was duly notified to the accused party.

NINTH: On July 20, 2023, and with entry registration number REGAGE23e00049337470, the Foundation submitted a written statement of allegations regarding the Resolution Proposal.

The Foundation acknowledges responsibility for the late compliance with the information request made by this Agency, although it claims the occurrence of an unintentional error and absence of culpability. The Foundation explains that the delay in responding to the information request is solely due to an

unintentional error that occurred in the processing and internal management of the notifications received, which prevented the responsible body from having a complete and timely understanding of the request. It states that this was an unintentional human error in addressing the requested information, which was only noticed when this Agency sent the subsequent communication notified on June 22, 2023, thus determining an incident that should be considered as something punctual and isolated.

Furthermore, it argues that the attention, albeit late and out of time, to the requests, even after the notification of the agreement resolving the initiation of the sanctioning procedure, demonstrates the Foundation's willingness to cooperate and is evidence of diligent action, which could shift the responsibility in the sanctioning context.

Likewise, it points out that its actions, as an entity belonging to the public sector and non-profit, are governed at all times by the observance of the public interest, with special care in the duty of diligence and good faith that is required of an entity of such nature. In this regard, it has an approved manual of internal management procedures, detailed and specific for each processing process and area of action, which guide workflows towards optimal results, as well as maintaining standards of quality and efficiency.

These procedures, it continues, are periodically tested in each exercise by the audit and review by the supervisory bodies of the General Intervention of the Junta de Andalucía and the Court of Accounts of Andalucía, with fully satisfactory results, in accordance with the Audit Report dated July 5, 2023.

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of Renewal of Certification for the R&D+i Management System where the implementation of the System has been verified against the requirements specified in the reference standard 160002:2021, which indicates that “it demonstrates the absence of non-conformities.” This only highlights the robustness of its procedures and the great diligence of the entity, evidenced in the management of its activities.

The Foundation asserts that an isolated and specific error such as the one that occurred, which was impossible to avoid absolutely, should not negate the appropriate diligence in the exercise of its activities, which is measured and confirmed by its usual behavior.

The Foundation adds that, upon confirming the internal error, necessary measures have been adopted aimed at improving internal procedures for the management and processing of communication systems for external notifications, in order to prevent similar situations from occurring again, ensuring timely responses to any requests of any kind received. Thus, they are proceeding to review and update Procedure PG02-01 for Document Registration, to unify the different platforms and modes of submission, along with the unification of internal notifications to the responsible parties of the Units. The Foundation argues that, according to established jurisprudence, the guiding principles of criminal law are applicable, with certain nuances, to sanctioning administrative law (see, among others, the Judgment of the Constitutional Court No. 18/1981, of June 8).

It also indicates that the principle of culpability also governs in matters of administrative infringements and their sanctioning regime, as it is a manifestation of the State's *ius puniendi*. In this sense, an objective or no-fault liability regime is inadmissible in our legal system (in this regard, see the Judgment of the Constitutional Court No. 76/1990, of April 26).

In this respect, the Foundation cites Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, to conclude that without proven intent or negligence, one cannot be held responsible for an infringement.

In these terms, the Foundation states that the National Court has ruled in repeated judgments: an isolated error cannot, by itself, give rise to liability when there is no intent or fault and the relevant diligence has been exercised. By way of illustration, it cites the Judgment of the National Court of December 23, 2013 (Rec. 341/2012).

Given that the delayed response to the information request was due to a specific error and not to

negligent behavior, this Agency must proceed to archive the present sanctioning procedure due to the absence of the element of fault.

Subsidiarily, in the event of being considered responsible for the infringement, mitigating circumstances should be taken into account in accordance with the provisions of Articles 83.2 GDPR and 76.2 of the LOPDGDD. Firstly, it states that the request has been satisfied, albeit late due to a specific error.

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involuntary, remedying the infringement produced, which would be lacking in severity (art. 83.2.a of the GDPR). Secondly, it has acted with due diligence, implementing measures to prevent the specific error encountered, in a preventive and proactive manner to ensure the management and attention to information requests received (art. 83.2.b GDPR). Finally, it adds that it has cooperated in good faith with this Agency to remedy the infringement (art. 83.2.f GDPR).

The Foundation considers that this case should not result in the imposition of a fine, but rather a warning, and that we are facing a minor infringement, consisting of a mere formal delay in responding to the information request received, without the fact that it is classified as very serious for mere prescription purposes changing such consideration. Thus, the Foundation believes that, in the event of a potential sanction, it should be applied at its minimum level, taking into account the degree of culpability (which it believes to be non-existent), with a mere warning.

In addition to adopting the necessary measures to prevent situations like the one at hand from recurring, the Foundation shows full willingness to provide any documents and information necessary for the continuation of the investigation by this Agency, as well as for any other that may be initiated and for which its collaboration is appropriate.

Finally, the Foundation requests that the termination and filing of this sanctioning procedure be agreed upon due to the absence of the element of fault, given the occurrence of a mere involuntary and specific error motivating the potential infringement and, in the event that this is not deemed appropriate, that the principle of proportionality be considered when determining the possible applicable sanction, with the application of mitigating factors and absence of aggravating factors, establishing it at its lower limit, with the imposition of a warning.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

#### PROVEN FACTS

FIRST: The information requests indicated in the second and third recitals were notified electronically, in accordance with the provisions of Article 43 of the LPACAP.

SECOND: The Foundation has not responded to the information requests made by this Agency within the framework of the referenced investigation actions with file number EXP202207910 prior to the issuance of the agreement to initiate the present sanctioning procedure.

THIRD: The notification of the agreement to initiate the present sanctioning procedure was received by the Foundation on May 31, 2023.

FOURTH: The Foundation has submitted the allegations to the agreement to initiate this sanctioning procedure described in the seventh recital.

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FIFTH: The notification of the proposed resolution of the present sanctioning procedure was received by the Foundation on July 10, 2023.

SIXTH: The Foundation has submitted allegations to the proposed resolution of this sanctioning

procedure recorded in the ninth recital.

## LEGAL GROUNDS

I

### Competence

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Allegations to the initiation agreement

In response to the allegations presented by the Foundation, the following should be noted.

The response to the information requests given during the instruction of this procedure does not affect the existence of the proven facts constituting the infringement.

Regarding the information communicated, this Agency acknowledges receipt of the same, without this statement implying any pronouncement on it.

III

### Allegations to the Proposed resolution

In response to the allegations to the Proposed resolution of the present file presented by the Foundation, the following should be noted.

In relation to the involuntary error and the absence of culpability alleged by the Foundation, which acknowledges responsibility for the late compliance with the information request made by this Agency, it should be noted that, as indicated in its written allegations, it serves more than 22,000 medical professionals and 4,000 researchers, therefore, it is susceptible to processing a large amount of personal data and should have robust procedures for the

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compliance with the obligations set forth in data protection regulations, including responding to requests from the supervisory authority within the time frame granted for that purpose. It is also noted that the Foundation was notified on two occasions, reiterating the request and thus the omission of response. Certainly, the principle of responsibility provided for in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that: "Only individuals and legal entities may be sanctioned for acts constituting administrative infractions, as well as, when a law recognizes their capacity to act, the groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for them on the basis of intent or negligence."

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its ruling 76/1990, of April 26, the Constitutional Court has declared that objective or no-fault liability cannot be applied in the administrative sanctioning sphere, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions based solely on the result, without proving a minimum level of culpability even in terms of mere negligence, is excluded. Now, the manner of attributing responsibility to legal entities does not correspond to the forms of intentional or negligent culpability that are attributable to human conduct.

Thus, and with this we enter into the examination of the reason, in the case of infractions committed by legal entities, including public administrations, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011 (cassation appeal in the interest of law 48/2007), it is necessarily applied differently than it is with individuals. According to STC 246/1991 that we have just cited, "(...) this different construction of the attribution of authorship of the

infraction to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be genuinely effective and from the risk that, consequently, the legal entity subject to compliance with that norm must assume.”

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec 1067/2006, that “although the culpability of the conduct must also be subject to proof, it must be considered in order to assume the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires proof of the absence of such elements, or in its normative aspect, that the diligence that was required by the one claiming its non-existence has been exercised; in short, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior.”

Therefore, the lack of culpability is dismissed as it is proven, as such.

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as it has also been recognized by the Foundation, which did not respond to the requests made by this Agency until the sanctioning procedure against it was initiated, thus calling into question the diligence employed and therefore the requested filing does not proceed.

Finally, regarding the substitution of the fine for a warning, it is recalled that, as reflected in the initiation agreement and the proposed resolution, in accordance with Article 83.7 of the GDPR and the provisions of Article 77.2 of the LOPDGDD, transcribed below, since the responsible party is a foundation belonging to the public sector, the sanction is replaced by the declaration of the infringement committed.

IV

#### Unfulfilled Obligation

In accordance with the evidence available, it is considered that the Foundation has not provided the Spanish Agency for Data Protection with the information it requested within the deadlines granted for this purpose.

With the aforementioned conduct of the Foundation, the investigative power conferred to control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the Foundation, for violation of Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

“a) order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions; b) carry out investigations in the form of data protection audits; c) carry out a review of the certifications issued under Article 42, paragraph 7; d) notify the controller or the processor of the alleged infringements of this Regulation; e) obtain from the controller and the processor access to all personal data and all information necessary for the exercise of its functions; f) obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States.”

V

#### Classification and Qualification of the Infringement

In accordance with the evidence available, it is considered that the facts presented are deemed to constitute an infringement, attributable to the Foundation.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

VI

#### Imputed Sanction

Article 83.7 of the GDPR provides as follows:

“Without prejudice to the corrective powers of the control authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

h) Public sector foundations.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be taken to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Notwithstanding the provisions established in the previous section, the data protection authority will also propose the initiation of disciplinary proceedings when there are sufficient indications for doing so. In this case, the procedure and the sanctions to be applied will be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is evidenced that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order the publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be

communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the ANDALUSIAN PUBLIC FOUNDATION FOR THE MANAGEMENT OF HEALTH RESEARCH IN SEVILLE (FISEVI), with NIF G41918830, has infringed the provisions of Article 58.1 of the GDPR, an infringement classified in Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the ANDALUSIAN PUBLIC FOUNDATION FOR THE MANAGEMENT OF HEALTH RESEARCH IN SEVILLE (FISEVI).

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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